

International Law Review

The development of international law has always depended upon the patient accumulation of State practice and the considered reflection of scholars and tribunals alike. Treaties record the settled will of States, while custom grows from conduct that is both widespread and accepted as law. When a dispute

arises, the parties look first to their own agreements, then to the general principles that the community of nations has come to treat as binding. In this way the legal order expands, not by sudden invention, but by the slow and careful extension of rules that have already proved their worth in practice.

The same process can be seen in the work of codification, where settled rules are restated with greater precision and the gaps between them are filled by agreement. Each generation inherits a body of doctrine and adds to it, sometimes by treaty, sometimes by the quiet weight of consistent conduct.

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The result is a legal order that is neither static nor wholly new but always growing at the edges, and for the student of the subject the lesson is that no single instrument tells the whole story; the careful reader must attend to practice as closely as to the text itself.